

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Candace Taylor	Team: Squad #06	CCRB Case #: 201504577	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/07/2015 3:10 AM	Location of Incident: Inside the 75th Precinct Stationhouse	18 Mo. SOL 12/7/2016	Precinct: 75		
Date/Time CV Reported Sun, 06/07/2015 11:00 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 06/07/2015 11:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Bryan Scheblein	26121	955457	PBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Steven Farrell	01044	921324	075 PCT
2. POM Teriq Grant	12175	954893	PBBN
3. POM Edmund Morris	20838	924217	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . POM Bryan Scheblein	Abuse: PO Bryan Scheblein did not obtain medical treatment for § 87(2)(b)	A . Unsubstantiated
B . POM Bryan Scheblein	Abuse: PO Bryan Scheblein refused to provide his name to § 87(2)(b)	B . Unsubstantiated

Case Summary

On June 7, 2015, § 87(2)(b) filed this complaint via the on-line website with the CCRB.

On June 7, 2015, at approximately 3:10 a.m., on the northwest corner of Liberty Avenue and Elton Street in Brooklyn, PO Bryan Scheblein and PO Teriq Grant from Patrol Borough Brooklyn North arrested § 87(2)(b) for § 87(2)(b) as he walked home with his girlfriend, § 87(2)(b). Upon his arrival at the 75th Precinct stationhouse, § 87(2)(b) told PO Scheblein that he needed to go to the hospital and PO Scheblein allegedly said, “There’s nothing wrong with you” (**Allegation A**). § 87(2)(b) asked PO Scheblein for his name, at which time PO Scheblein allegedly walked away (**Allegation B**) (01 and 02 Board Review). § 87(2)(b) was charged with § 87(2)(a) 160.50 (03 Board Review).

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation because § 87(2)(b) was arrested without a DAT. As of July 29, 2015, § 87(2)(b) has not filed a Notice of Claim with the City of New York regarding this incident (04 Board Review). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) (06 Board Review).
- PO Scheblein has been a member of the NYPD for two years with no substantiated allegations (see Officer History).
- PO Morris has been a member of the NYPD for 16 years with no substantiated allegations (see Officer History).

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)

Allegation A –Abuse of Authority: PO Bryan Scheblein did not obtain medical treatment for § 87(2)(b)

Allegation B- Abuse of Authority: PO Bryan Scheblein refused to provide his name to

§ 87(2)(b)

It is undisputed that § 87(2)(b) was arrested and taken to the 75th Precinct stationhouse for processing. According to § 87(2)(b) as soon as he entered the stationhouse, he told PO Scheblein that he needed to go to the hospital. PO Scheblein walked away and returned some time later, at which time § 87(2)(b) told PO Scheblein that he had to go to the hospital. PO Scheblein asked § 87(2)(b) what was wrong and § 87(2)(b) said that he could not breathe. PO Scheblein responded that there was nothing wrong with § 87(2)(b) who then asked PO Scheblein for his name. PO Scheblein walked away after § 87(2)(b) made the request. Later, PO Scheblein went into the holding cell area and § 87(2)(b) told PO Scheblein that he wanted

to go to the hospital because of a pre-existing condition and explained that he could not breathe and that his legs hurt from standing for a prolonged period. PO Scheblein retrieved § 87(2)(b)'s cell phone and gave it to § 87(2)(b) to call § 87(2)(b) to bring § 87(2)(b)'s medication to the stationhouse. § 87(2)(b) stated that he never asked for his medication at any time but only asked to be taken to the hospital due to § 87(2)(b) (01 and 02 Board Review).

PO Scheblein stated that he and PO Grant transported § 87(2)(b) to the stationhouse after he was arrested for § 87(2)(b). § 87(2)(b) was observed walking with a lit marijuana cigarette to which he admitted swallowing. While in front of the desk, § 87(2)(b) did not complain of any pain to his legs, allergies or if he had any difficulty breathing. PO Scheblein acknowledged that § 87(2)(b) mentioned that he had a pre-existing injury to his leg but did not remember the details of this conversation. PO Scheblein further stated that he had observed § 87(2)(b) walking freely when they were on scene. PO Scheblein was aware of § 87(2)(b)'s veteran status but expressed skepticism because of prior arrests during the time § 87(2)(b) said he was in the service. § 87(2)(b) did not ask PO Scheblein to obtain medical treatment, and did not state he needed to go to the hospital or requested his name or shield number. PO Scheblein denied that he ever refused to obtain medical treatment for § 87(2)(b) or provide his name or shield number. He noted that both his name plate and shield are clearly displayed on his uniform.

PO Scheblein did not speak with § 87(2)(b) about allowing § 87(2)(b) to bring § 87(2)(b)'s medication to the stationhouse. PO Scheblein did not tell § 87(2)(b) that he would be allowed to have his medication inside the stationhouse (07 and 08 Board Review). There is no record of a medical treatment of prisoner report on file with the 75th Precinct or at the Brooklyn Court Section. The command log at the 75th Precinct noted § 87(2)(b) physical condition as apparently normal upon his arrival (14 and 15 Board Review).

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____

	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date